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ENGINEERING AND ZONING REPORT

Date: January 31, 2017

To: Zoning Board of Princeton

From: John M. West, P.E., Land Use Engineer JMW
Derek Bridger, Zoning Officer DB

Re: **Application for 86 Spruce Street**
Minor Site Plan with Variance
86 Spruce Street LLC/Applicant and Owner
Block 30.03, Lots 62 & 63, Zone R4

1.0 EXISTING SITE

86 Spruce Street was the subject of a zoning case in 1990. At that time, the applicant filed an appeal of the zoning officer's interpretation and in the alternative filed a bi-furcated use variance seeking approval to utilize the existing nine unit multiple dwelling as a ten unit multiple dwelling structure. Zoning records indicated approval for nine units while there were ten actual units in the building. The number of units in the building became an issue when the current owner purchased the property from the previous owners. The board approved the application to allow the utilization of the existing non-conforming structure as a ten unit multiple dwelling with the condition that the applicant return to the zoning board and submit a separate site plan for approval which shall include a minimum of fifteen parking spaces conforming to the zoning ordinance. A copy of the findings of fact for that case (Case 566) is attached to this memorandum. The property is now under contract of sale and an application has been filed by 86 Spruce Street LLC for site plan approval for an existing ten unit apartment building to demonstrate compliance with the fifteen space parking requirement as well as the related site plan and zoning requirements. The property is located on the north side of Spruce Street between Chestnut Street and Pine Street. The lot contains 18,586 SF and is located within the R4

residential zone. The adjacent properties to the east, west and south are one to four unit residential properties in the R4 zone. To the north, the property abuts the Barbara Sigmund Park and Hamilton Avenue. The Westminster Choir College is located across Hamilton Avenue to the north.

2.0 PROPOSED PROJECT

The applicant has submitted a site plan with 21, 9'X19' parking stalls. There is an existing parking area in back of the subject property. Surveys from the original 1990 application indicate that the parking area has been expanded along the northern lot line. The parking area slopes toward Hamilton Avenue and the Barbara Sigmund Park.

2.0 PROPOSED SITE PLAN

The proposed site plan features 21 parking spaces, although the plans label 20, the count is 21. Each space has a sign and a bumper block. The lot is proposed to remain gravel. Landscaping includes a 4' buffer strip around the perimeter of the lot which will be planted with 48 Green Giant Western Arborvitae and 6 Flowering Dogwoods. The existing parking lot lighting will be removed and new lighting will be installed. The existing board on board fence will be retained and extended along the eastern property line. The proposed site plan provides 21 parking spaces where 15 are required by ordinance. No other site improvements are proposed.

3.0 ZONING COMMENTS

Use Variance

The subject property is located within the R4 Zone and subject to the use and bulk regulations pursuant to Section 10B-254 and 10B-258. The existing ten unit multiple dwelling was granted a use variance approval on June 26, 1990 for the structure to be utilized as a non-conforming ten unit multiple dwelling structure in exception to the required lot area and density. The required lot area for ten units is 26,000 sf, whereas the existing lot area is 18,600 sf. The existing use is a legal non-conforming use. The use variance approval that was granted in 1990 was subject to the following conditions:

1. The applicant will register all ten units with the Borough Rent Registration Board.
2. All ten units will be improved and modified so as to conform to all fire code, housing code and building code requirements.
3. The applicant will submit a separate application to the Board of Adjustment for site plan approval which shall include a minimum of fifteen on-site parking spaces conforming to the Zoning Ordinance. The separate approval of the use variance is conditioned upon the granting of all required subsequent approvals by the Board of Adjustment pursuant to N.J.S.A 4055D-76 (b) at the time of site plan approval.

The property is now under a contract of sale and the owner has filed the required site plan application. The Zoning Board is charged with reviewing the site plan.

Bulk Variance

Section 17A-390 (b) requires that all lots with more than 10 spaces shall be graded, paved, landscaped, lighted and maintained by the owner in accordance with site plan approval. The existing parking lot is not paved and the applicant is not proposing to pave it. **A variance is required.**

Staff is in support of the variance as paving the lot would increase the rate of runoff over the lot and have a negative effect on the adjoining property to the north.

4.0 REVIEW IN ACCORDANCE WITH CRITERIA SET FORTH IN SECTION 10B-226

The documents have been reviewed in accordance with the criteria set forth in Section 17A-193 of the Borough of Princeton Land Use Ordinance as follows:

(a) Ecological Considerations

1. The existing parking lot on the proposed plan will have a minimal effect on ecological considerations. Minimal site work is proposed.

(b) Landscape

1. New landscaping is proposed along the north, east and western property lines. The landscape plan has been reviewed by Dan Dobromilsky, P.L.A., the towns landscape consultant and had the following comments and suggestions:
   a. The selection of dogwoods proposed to be planted near the rear of the parking area should be reconsidered and a taller species should be considered so as to avoid future conflicts with vehicles on the drive with low and wide branches.
   b. It appears that at some time a street tree was planted in front of the property as evidenced by the bow in the sidewalk. A new street tree should be planted.

(c) Relation of Proposed Structures to the Environment

1. The existing parking lot is located behind the house and is visible from the entry drive on Spruce and from Hamilton Avenue to the rear.

(d) Scenic, Historical, Archaeological, and Landmark Sites

1. The proposed site is not located within a historic district and does not contain any State or Federally designated sites.

(e) Surface Water Drainage.

There are no new impervious surfaces proposed with this application, however, based on review of aerial photography from 1989 and surveys of the property from 1990, it appears that the parking lot was expanded approximately 20' further to the north.

Staff Comments:

a. **To compensate for the increase in the size of the parking lot, staff would recommend the installation of a rain garden.**

(f) Driveway Connections to Public Streets

1. The existing driveway encroached onto adjacent lot 64. The applicant is proposing to relocate the driveway.

(g) Traffic Effects

1. There are no new units associated with this application and therefore there will be no increase to traffic.

(h) Pedestrian and Bicycle Safety

1. There are no new Pedestrian or bicycle improvements proposed.

Staff Comments:

a. **The applicant should install a bike rack.**
b. **A sidewalk should be installed from the back of the parking lot to Hamilton Avenue.**

(i) On-Site Parking and Circulation

1. The applicant is proposing to shift the driveway approximately 5 feet to the west to eliminate the encroachment onto lot 64. There will be minor adjustments to the existing gravel parking lot to provide a minimum 15 foot wide driveway and the 21 existing parking stalls will all be 9x19 with a 24 foot wide aisle.

(j) Utility Services

1. Utilities

a. Gas - No changes are proposed.
b. Sewer - No changes are proposed.
c. Water – No changes are proposed.

2. Lighting – currently there is an existing 500 watt spot light on the rear of the building, the applicant is proposing to replace the existing light with a 200 watt New Lantern Downturn fixture mounted 10 ' above grade.

3. Fire Protection – There is a fire hydrant located directly across the street at the intersection of Pine Street that will provide adequate fire flow for this building. The applicant should indicate if the existing building is sprinklered.

(k) Disposal of Wastes

1. Household wastes and recycling are currently stored in individual containers located in the rear of the building. It appears the trash and recycling are picked up as part of the municipal contract, this should be verified by the applicant.

Staff Comments:

a. A 10 unit apartment building is considered a commercial property and therefore the applicant will have to contract with a private waste and recycling hauler.
b. The plans should be revised to show a trash enclosure.

(l) Noise

1. It is required that the applicant and contractors adhere to Princeton's noise ordinance relating to construction work; which restricts construction work between 7 a.m. and 6 p.m. Monday through Friday; 8 a.m. to 6 p.m. Saturday; with no work on Sunday.

(m) Advertising Features – None proposed.

(n) Special Features - None proposed.

(o) Waterway Corridors – No waterway corridors are shown on this site.

(p) Special Technological Impacts – None proposed.

5.0 STAFF COMMENTS

a. Any portion of the existing sidewalk along Spruce Street that is cracked or is a tripping hazard should be replaced.
b. Lots 62 and 63 should be consolidated.
c. As required by ordinance, the applicant is required to post performance guarantees and inspection fees with the Municipality of Princeton for the installation of the required on-site improvements.
d. Applicant shall submit confirmation that the property is registered with either the municipal Bureau of Housing Inspection or the applicable State agency.
e. Applicant shall submit confirmation that all ten dwelling units will be improved and modified so as to conform to all fire code, housing code and building code requirements as conditioned by the original zoning approval, Case 566 dated July 26, 1990.

6. APPROVALS

The following additional approvals and/or waivers will be required and recommended to be considered as conditions of Zoning Board approval:

a. Mercer County Planning Board.

Documents Reviewed:

1. Minor Site Plan, prepared by Kensho Resources LLC, dated November 14, 2016, revised January 11, 2017.
2. Application for Site Plan Review dated November 11, 2016.
3. Zoning Variance Application dated November 17, 2015.
4. Fire Protection Narrative prepared by Kensho Resources LLC, dated November 14, 2016.
5. Minor Site Plan Checklist dated November 11, 2016.

cc: Lee O. Solow, PP, Planning Director
Ilene Cutroneo, Asst. to the Planner
File, Correspondence